Office of Information Technology Services

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New York State Information Technology Guideline	**No**: NYS-G25-002
IT Guideline: **Generative Artificial Intelligence Use in the Workplace**	**Updated**: 6/24/2026
	Issued By: NYS Office of Information Technology Services **Owner**: Chief Artificial Intelligence Office

1.0 Purpose and Benefits

The purpose of this guideline is to provide guidance for the use of Generative Artificial Intelligence (GenAI) by State Agencies (SAs) in the workplace. This guideline is designed to assist SAs in understanding the benefits and risks of GenAI and encourages the adoption of best practices that will maximize benefits and minimize risks to SAs that choose to use GenAI in their workplaces. Questions on the elements of this guideline may be directed to the Office of Information Technology Services' (ITS) Chief Artificial Intelligence Office at its.sm.caio.ai@its.ny.gov.

2.0 Authority

Section 103(10) of the State Technology Law provides the Office of Information Technology Services (ITS) with the authority to establish statewide technology policies, including technology and security standards. Details regarding this authority can be found in NYS ITS Policy, *NYS-P08-002 Authority to Establish State Enterprise Information Technology (IT) Policy, Standards and Guidelines*.

3.0 Scope

This guideline applies to all "State Agencies" as defined in Section 101 of the State Technology Law. This includes employees and all third parties (such as local governments, consultants, vendors, and contractors) that use or access any

Information Technology (IT) Resource for which the SA or ITS has administrative responsibility, including systems managed or hosted by third parties on behalf of the SA or ITS.

Non-SAs, including authorities, boards, and other New York State governmental organizations are encouraged to consider this guideline in their use and adoption of AI.

4.0 Information Statement

4.1 Generative Artificial Intelligence Definition

For the purposes of this guidance, “generative artificial intelligence” means an artificial intelligence system that is capable of producing and being used to produce synthetic digital content, including images, videos, audio, and text.

Examples of popular GenAI systems that fall under this definition are OpenAI’s ChatGPT, Anthropic’s Claude, Google’s Gemini, Microsoft’s CoPilot, and ITS’s own AI Pro.

4.2 Benefits and Risks

GenAI systems are a powerful tool that can improve the day-to-day operations of SAs, leading to greater productivity and innovation. However, GenAI systems can carry inherent risks that their users need to be aware of so that appropriate risk mitigation strategies can be deployed. SAs should therefore encourage adoption of GenAI systems where appropriate, train their employees on effective GenAI usage, and ensure practices and procedures are in place to mitigate risks.

4.3 Best Practices

The following are a set of best practices SAs can encourage and adopt that maximize efficient use of GenAI systems while minimizing their potential risks. This list is not exhaustive, and SAs are encouraged to adopt other measures as needed. SAs should remain mindful that technology in this area is fast-moving and they should review and update their practices as appropriate.

4.3.1.1 Ensure Adequate Training Before GenAI Usage

SAs should ensure their staff undergo GenAI training before deploying a GenAI system. Such training should, at a minimum, cover some of the topics discussed in this guideline. The importance of ongoing training on GenAI systems cannot be overstated as these systems evolve and their use cases increase.

4.3.1.2 Be Careful When Entering Personal, Private or Sensitive Information into GenAI Systems

Because GenAI systems may use user inputs and related outputs for training purposes, SAs should be especially vigilant when using these systems. GenAI

systems might not anonymize or deidentify data and may expose the information to the internet. Additionally, inputting certain types of data may violate various laws and regulations without the appropriate controls in place. Further, due to their potential for hallucination[1] (e.g., inventing false facts, image generation errors, doubling down on fabrications) and bias, GenAI systems and their outputs should be reviewed for accuracy and fairness by users.

To minimize risks, avoid entering PPSI into GenAI systems without understanding how the GenAI system handles this data and do not use these systems without SA leadership approval. SAs should ensure GenAI outputs are frequently and consistently reviewed by humans to ensure any issues are spotted and addressed. At a minimum, SAs should ensure humans review GenAI outputs before they are published or submitted to viewers outside the SA.

4.3.1.3 Ensure Human Oversight of GenAI Systems

SAs may utilize GenAI systems to support decision-making processes; however, such systems cannot be permitted to fully automate these decisions. Any use of automated decision-making systems by SAs must be subject to human review. This entails that users, who are trained and understand the system's functionality, risks, and limitations, should oversee and control all processes where GenAI systems support decision-making. These users should have the authority to alter or override decisions made by the system to ensure accountability and alignment with legal, ethical, and operational standards.

4.3.1.4 Transparency

GenAI systems excel at producing content that mimics human output such as text, voice, and images, making it difficult for recipients to distinguish between AI-generated and human-created content. As such, SAs should review the requirements of section 4.2.3 of NYS-P24-001 Acceptable Use of Artificial Intelligence Technologies regarding the disclosure of the use of GenAI systems.

4.3.1.5 Practice Effective Prompting

GenAI systems generally operate based on human inputs, known as “prompts.” GenAI systems can be very sensitive to prompt phrasing: inputs that seem identical to humans can produce dramatically different results. As such, SAs adopting GenAI systems should practice “prompt engineering.” Prompt engineering is the practice of optimizing prompts to guide and improve GenAI system outputs by trying different phrasing of the same prompt, or slightly modifying the parameters of the prompt, to achieve a desired result.

There is no single best practice for prompt engineering, and ideal prompts vary based on model and task. In general, users of GenAI systems should try a wide

[1] AI hallucinations are when the response from an AI model contains false or misleading information presented as fact.

variety of prompts when using GenAI systems, particularly if they are not getting a desirable or helpful response. Examples of prompt engineering include:

Role-Based Prompts: Define the model's role within the prompt (e.g., "You are a business case drafting expert...") to guide its responses within the appropriate context and reduce off-topic or unexpected outputs.

Chain-of-Thought: Enhance outcomes by asking the model to generate a step-by-step plan with an explanation, purpose, and expected outcome of each step. Users then follow up within the same session, prompting the model to address each step in sequence. This structured approach improves logical coherence and reduces the likelihood of errors.

Iterative Prompt Refinement: Engage in a cycle of testing and refining prompts to achieve desired outcomes. This process helps in identifying prompts that may produce more relevant results.

4.3.1.6 Create User Feedback Mechanisms

SAs should set up clear and easy channels for users to flag inaccuracies or concerns with GenAI outputs to their supervisors. This system for collecting feedback is important because it helps identify issues that human reviewers might miss and provides valuable information that can be used to improve the GenAI system over time.

4.3.1.7 Maintain Detailed Usage Logs

All interactions with approved GenAI tools (e.g., ChatGPT, Copilot) should be logged for a minimum of 90 days to enable accountability and help identify potential misuse, security issues, or areas for improvement in system usage. SAs should track who uses GenAI systems, what inputs are provided to the system, and how outputs are utilized.

4.3.1.8 Incorporate Contractual Terms to Protect SA Data

SAs should consider incorporating terms into contracts with external GenAI providers that safeguard an SA's data and information. SAs should consider applicable law and regulations regarding relevant data and information in determining the necessity and scope of such terms. Terms to consider include, but are not limited to:

- Prohibition against using an SA's data or prompts for training a vendor's GenAI without explicit written consent and that SA's data is used for limited purposes. Data should be restricted for use and retention solely in providing contracted services.

- Ownership of GenAI-generated data.

- Requiring notice from vendor if a third party requests access to the SA's data through, for example, a subpoena or court order.

- Adherence to New York State Information Technology Policy No: NYS-P24-001 “Acceptable Use of Artificial Intelligence Technologies,” or any successor policies.

- Vendors providing clear and unambiguous notice to an SA prior to implementing GenAI, detailing its purpose, functionality, and data usage.

- Having GenAI tools not integral to a system disabled by default. SAs should detail the approval process required by the SA for any GenAI usage, and what approval is needed to implement GenAI.

- Compliance with all applicable local, state, policies, rules, and federal laws and regulations concerning GenAI. AI processing, transmitting, or storage of SA data reflect relevant geographic data residency requirements in applicable regulatory frameworks and the information classification standard.[2]

4.3.1.9 Comply with All Relevant ITS Policies

GenAI systems are still a subset of AI systems and information technology tools. As such, SAs that use GenAI systems should ensure that they continue to comply with all relevant ITS policies and standards, including, but not limited to:

1. NYS-P24-001 Acceptable Use of Artificial Intelligence Technologies

2. NYS-P03-002 Information Security

3. NYS-P14-001 Acceptable Use of Information Technology (IT) Resources

5.0 Compliance

This guideline shall take effect upon publication. Compliance with enterprise guidelines is not compulsory, but strongly suggested. ITS may amend its guidelines at any time; compliance with amended guidelines is not compulsory, but strongly suggested.

6.0 Definitions of Key Terms

Except for terms defined in this policy, all terms shall have the meanings found in http://www.its.ny.gov/glossary.

“Geographic data residency” refers to legal requirements regarding the geographic locations where data can and cannot be received, processed, stored, accessed, or transmitted. Examples including criminal justice information, governed by the

[2] It is the responsibility of the State Entity deploying GenAI tools to identify and comply with geographic residency requirements. For more information, see ITS-P019-002 Cloud Computing Policy.

CJIS Security Policy, and federal tax information, governed by IRS Publication 1075.

7.0 Contact Information

Submit all inquiries and requests for future enhancements to the policy owner at:

Chief Artificial Intelligence Office
Reference: NYS-P24-001
NYS Office of Information Technology Services
State Capitol, ESP, P.O. Box 2062
Albany, NY 12220
Email: its.sm.caio.ai@its.ny.gov

Statewide technology policies, standards, and guidelines may be found at the following website: https://its.ny.gov/policies

8.0 Revision History

This policy should be reviewed consistent with the requirements set forth in ITS-P24-003 Process for Establishing Information Technology Policies, Standards, and Guidelines.

Date	Description of Change	Reviewer
06/24/2026	Issued guideline	Chief Artificial Intelligence Office

9.0 Related Documents

Appendix A: Common Use Cases and Examples

1. Summarization

GenAI Capability: This capability allows GenAI to read through large amounts of text and generate shorter versions that highlight the most important points.

Purpose: To help agencies quickly understand and process large volumes of textual information, saving staff time and improving access to key insights.

Examples:

> Summarize public comments received on a proposed regulation to identify key themes and common concerns.
>
> Summarize research papers or reports to inform policymakers on a topic.
>
> Create concise summaries of meeting minutes or lengthy emails.

Human Oversight: Employees should review the summaries for accuracy and ensure they reflect the most relevant information for the intended purpose.

2. Content Generation (Text, Image, Video)

GenAI Capability: This capability allows GenAI to create original digital content, such as text, images, and videos, based on prompts or input data.

Purpose: To quickly produce a variety of communication materials, creative content, and visual aids for public outreach and internal communication.

Examples:

- Draft social media toolkits for emergency preparedness campaigns.
- Draft blog posts or newsletters for policy updates or civic engagement.
- Generate video explainers for new online digital services or programs.

Human Oversight: Employes should review content for tone, factual accuracy, accessibility, and cultural sensitivity. All materials intended for the public should follow branding and editorial guidelines.

3. Chatbots

GenAI Capability: GenAI-powered chatbots can simulate natural conversations to guide users, answer questions, and assist with common tasks. They can adapt to user needs, support multiple languages, and provide 24/7 support.

Purpose: To improve service delivery, reduce response times, and help residents navigate agency services without requiring live assistance for every inquiry.

Examples:

- Set up a chatbot that can guide users through services that may be available to them.
- Answer frequently asked questions at scale to reduce call volume.
- Shorten the time residents spend waiting on hold or talking with staff at state customer service centers.

Human Oversight: Employees should regularly review the chatbot's performance, update responses as policies change, and ensure that complex or sensitive questions are correctly identified and sent to a human agent for assistance.

4. Simplification

GenAI Capability: This capability enables GenAI to convert technical, legal, or complex information into plain language explanations based on user input.

Purpose: To make government services and requirements more accessible to all users, regardless of familiarity with agency processes.

Examples:

- Rephrase legal language on agency websites into easy-to-understand summaries.
- Simplify step-by-step instructions for processes, like filing taxes, registering a business, or applying for aid.
- Offer simplified explanations of eligibility criteria for state benefits through a conversational interface.

Human Oversight: Employees should always verify the accuracy and clarity of the simplified content and explanations provided by the system.

5. Language Translation

GenAI Capability: This allows GenAI to automatically convert text or spoken language from one language to another.

Purpose: To improve communication and increase accessibility for residents who speak languages other than English, ensuring equitable access to state services, information, and public participation opportunities.

Examples:

- Translate agency website content, forms, and outreach materials into multiple languages.

- Provide real-time written translation for staff responding to resident inquiries.

- Enable chatbots or virtual assistants to interact with users in multiple languages based on preference.

Human Oversight: Employees should review translated materials for accuracy, tone, and cultural sensitivity prior to distribution or publication, especially those documents deemed vital by an SA. SAs must abide by all applicable NYS language access laws and policies.